



A COMMUNITY OF CHOICE

## Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001  
(Phone) 307-637-6282 (Fax) 307-637-6366

### MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council  
From: AJ Swain  
Subject: PUDC-24-18 | North Range Business Park – Assigned Zoning  
Date: March 11, 2024

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#### Background:

The item for consideration is an *Assigned Zoning*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 03/11/2024
- Public Services Committee 03/19/2024
- Second reading 03/25/2024
- Public Services Committee 04/02/2024
- Third and final reading 04/08/2024

#### Planning Commission Recommendation:

The Planning Commission heard this item at their March 4, 2024 meeting and unanimously recommended the Governing Body approve this application.

The Planning Commission Staff report is attached and has not been changed.

#### Related Items to be introduced on 03/11/2024:

- PUDC-24-16: Annexation
- PUDC-24-18: Zoning Map Amendment

#### Attachments:

1. Ordinance
2. Planning Commission Staff Report

**ORDINANCE NO. \_\_\_\_\_**

**ENTITLED: "AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE ESTABLISHING THE ZONING CLASSIFICATION OF AG AGRICULTURAL, LR LOW-DENSITY RESIDENTIAL, MR MEDIUM-DENSITY RESIDENTIAL, HI HEAVY INDUSTRIAL, AND CB COMMUNITY BUSINESS FOR LAND ANNEXED TO THE CITY OF CHEYENNE LOCATED SOUTHWEST OF THE I-25 AND I-80 INTERCHANGE ADJACENT TO ROUNDTOP ROAD."**

**BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:**

Section 1. SWAN Ranch, LLC, Microsoft Corp, Dyno Nobel INC, owners of:

A PARCEL OF LAND BEING SITUATED IN A PORTION OF SECTIONS 9, 10, 11, 12, 13, 14, 15 AND 16, TOWNSHIP 13 NORTH RANGE 67 WEST OF THE 6TH PRINCIPAL MERIDIAN, LARAMIE COUNTY, WYOMING AND BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS: COMMENCING AT THE SOUTHWEST CORNER OF SAID SECTION 9; THENCE ALONG THE WEST LINE OF SAID SECTION 9 N00°11'50"E A DISTANCE OF 1318.25 FEET TO A POINT ON THE PARCEL OF LAND DESCRIBED IN THE RECORDS OF THE LARAMIE COUNTY CLERK AT BOOK 2857, PAGE 1701 AND BEING THE TRUE POINT OF BEGINNING; THENCE CONTINUING ALONG SAID PARCELS BOUNDARY AND SAID WEST LINE OF SECTION 9 N00°11'50"E A DISTANCE OF 1318.27 FEET TO THE WEST ONE-QUARTER CORNER OF SAID SECTION 9; THENCE N00°05'58"E A DISTANCE OF 2294.10 FEET TO A POINT ON THE SOUTH RIGHT OF WAY OF INTERSTATE 80 AND THE BEGINNING OF A NON-TANGENT CURVE TO THE RIGHT CONCAVE TO THE SOUTH; SAID CURVE HAVING A RADIUS OF 5529.60 FEET, A CHORD BEARING OF N89°09'39"E, A CHORD DISTANCE OF 55.83 FEET AND A CENTRAL ANGLE OF 00°34'42", THENCE ALONG SAID SOUTH RIGHT OF WAY AND THE ARC OF SAID CURVE A DISTANCE OF 55.83 FEET; THENCE CONTINUING ALONG SAID SOUTH RIGHT OF WAY THE FOLLOWING COURSES AND DISTANCES: N89°29'59"E A DISTANCE OF 3020.56 FEET, THENCE S76°15'38"E A DISTANCE OF 939.31 FEET; THENCE N89°29'58"E A DISTANCE OF 1141.24 FEET TO A POINT OF INTERSECTION OF SAID SOUTH RIGHT OF WAY AND THE WEST RIGHT OF WAY OF WYOMING HIGHWAY 222 (ROUNDTOP ROAD); THENCE ALONG SAID WEST RIGHT OF WAY THE FOLLOWING COURSES AND DISTANCES: S00°03'36"E A DISTANCE OF 846.53 FEET; THENCE S89°51'26"E A DISTANCE OF 27.71 FEET; THENCE S00°01'29"W A DISTANCE OF 1214.81 FEET; THENCE S00°10'19"W A DISTANCE OF 1318.43 FEET; THENCE S00°07'34"W A DISTANCE OF 298.54 FEET; TO A POINT OF INTERSECTION OF SAID WEST RIGHT OF WAY AND THE NORTH RIGHT OF WAY OF OTTO ROAD; THENCE S07°05'04"E A DISTANCE OF 1253.07 FEET TO A POINT ON THE SOUTH RIGHT OF WAY OF THE UPRR; THENCE S00°34'22"W A DISTANCE OF 61.57 FEET TO A POINT ON THE NORTH BOUNDARY OF CLEAR

CREEK SUBDIVISION; THENCE ALONG SAID CLEAR CREEK BOUNDARY THE FOLLOWING COURSES AND DISTANCES: THENCE N74°21'45"E A DISTANCE OF 1091.30 FEET; THENCE N74°56'40"E A DISTANCE OF 800.49 FEET, THENCE N84°53'08"E A DISTANCE OF 445.33 FEET; THENCE N84°53'12"E A DISTANCE OF 799.19 FEET; THENCE S86°45'47"E A DISTANCE OF 1942.13 FEET; THENCE N88°04'15"E A DISTANCE OF 302.13 FEET; THENCE N87°37'57"E A DISTANCE OF 1284.46 FEET; THENCE N87°38'00"E A DISTANCE OF 1124.10 FEET; THENCE N37°33'40"E A DISTANCE OF 1369.43 FEET; THENCE N36°21'02"E A DISTANCE OF 632.05 FEET; THENCE N00°00'00"E A DISTANCE OF 1665.95 FEET; TO A POINT OF INTERSECTION OF SAID CLEAR CREEK SUBDIVISION BOUNDARY AND THE RIGHT OF WAY OF INTERSTATE 25; THENCE ALONG SAID RIGHT OF WAY AND CLEAR CREEK SUBDIVISION BOUNDARY S75°25'24"E A DISTANCE OF 176.05 FEET; THENCE S49°43'29"E A DISTANCE OF 103.16 FEET; THENCE S49°33'34"E A DISTANCE OF 406.01 FEET; THENCE S26°38'52"E A DISTANCE OF 400.15 FEET; THENCE S01°27'56"E A DISTANCE OF 1082.79 FEET; THENCE S01°40'36"E A DISTANCE OF 534.20 FEET; THENCE LEAVING SAID RIGHT OF WAY S88°38'35"W A DISTANCE OF 320.33 FEET; THENCE S87°59'51"W A DISTANCE OF 113.31 FEET; THENCE S06°22'24"W A DISTANCE OF 463.85 FEET; THENCE S66°06'32"W A DISTANCE OF 612.76 FEET; THENCE S12°53'06"E A DISTANCE OF 495.78 FEET; THENCE S31°22'57"W A DISTANCE OF 1447.90 FEET; THENCE N87°58'41"W A DISTANCE OF 152.29 FEET; THENCE N88°01'00"W A DISTANCE OF 1308.59 FEET; THENCE N88°00'30"W A DISTANCE OF 1249.02 FEET; THENCE N88°00'48"W A DISTANCE OF 903.67 FEET; THENCE S86°06'55"W A DISTANCE OF 600.98 FEET; THENCE S86°06'36"W A DISTANCE OF 1351.20 FEET; THENCE S86°06'28"W A DISTANCE OF 1220.44 FEET; THENCE S85°44'38"W A DISTANCE OF 1245.08 FEET; THENCE LEAVING SAID CLEAR CREEK SUBDIVISION BOUNDARY AND ALONG THE EAST LINE OF SAID SECTION 16 S00°34'22"W A DISTANCE OF 573.57 FEET; THENCE LEAVING SAID EAST SECTION LINE S87°32'27"W A DISTANCE OF 2910.93 FEET TO A POINT ON THE EASTERLY RIGHT OF WAY OF THE UPRR AND THE BEGINNING OF A NON-TANGENT CURVE TO THE RIGHT CONCAVE SOUTHEAST; SAID CURVE HAVING A RADIUS OF 3485.21, A CHORD BEARING OF N21°48'55"E, A CHORD DISTANCE OF 450.02 FEET AND A CENTRAL ANGLE OF 07°24'12" THENCE ALONG SAID UPRR RIGHT OF WAY AND THE ARC OF SAID CURVE A DISTANCE OF 450.34 FEET TO THE BEGINNING OF A NON-TANGENT CURVE TO THE RIGHT CONCAVE SOUTHEAST; SAID CURVE HAVING A RADIUS OF 3376.89 FEET, A CHORD BEARING OF N26°55'05"E A CHORD DISTANCE OF 165.15 FEET AND A CENTRAL ANGLE OF 02°48'09" THENCE ALONG THE ARC OF SAID CURVE A DISTANCE OF 165.17 FEET; THENCE N28°35'22"E A DISTANCE OF 117.72 FEET; THENCE N30°22'30"E A DISTANCE OF 95.65 FEET; THENCE N32°05'53"E A DISTANCE OF 110.27 FEET TO THE BEGINNING OF A NON-TANGENT CURVE TO THE RIGHT CONCAVE SOUTHEAST; SAID CURVE HAVING A RADIUS OF 443.18 FEET, A CHORD BEARING OF N37°29'37"E, A CHORD DISTANCE OF 121.82 FEET AND A CENTRAL ANGLE OF 15°47'59" THENCE ALONG THE ARC OF SAID CURVE 122.21 FEET TO THE BEGINNING OF A NON-TANGENT CURVE TO THE RIGHT CONCAVE SOUTHEAST; SAID

CURVE HAVING A RADIUS OF 602.58 FEET, A CHORD BEARING OF N62°38'30"E, A CHORD DISTANCE OF 107.64 FEET, AND A CENTRAL ANGLE OF 10°14'56" THENCE ALONG THE ARC OF SAID CURVE A DISTANCE OF 107.79 FEET TO THE BEGINNING OF A NON-TANGENT CURVE TO THE RIGHT CONCAVE SOUTHEAST; SAID CURVE HAVING A RADIUS OF 1215.16 FEET, A CHORD BEARING OF N64°06'53"E A CHORD DISTANCE OF 171.71 FEET AND A CENTRAL ANGLE OF 08°06'10" THENCE ALONG THE ARC OF SAID CURVE A DISTANCE OF 171.85 FEET; THENCE LEAVING SAID UPRR RIGHT OF WAY N04°22'40"E A DISTANCE OF 1066.80 FEET TO A POINT ON THE NORTH RIGHT OF WAY OF OTTO ROAD; THENCE N00°10'40"E A DISTANCE OF 1259.67 FEET; THENCE S89°28'58"W A DISTANCE OF 3205.77 FEET TO THE POINT OF BEGINNING. SAID PARCEL OF LAND CONTAINS 923.93 ACRES MORE OR LESS

have petitioned the governing body of the City of Cheyenne to annex the real property described herein and to make it a part thereof.

Section 2. That Section 2.2.8 of the UDC provides standards and procedures for zoning districts established on land or property currently without a City zone assignment including land being annexed to the city.

Section 3. That on March 4, 2024, the City of Cheyenne Planning Commission conducted public hearings, reviewed the proposed zoning assignment that is the subject of this ordinance, and recommended approval of said zoning assignment.

Section 4. That the Governing Body of the City of Cheyenne finds that the zoning assignment that is the subject of this ordinance meets the criteria specified in Section 2.2.8.d of the UDC.

Section 5. That in accordance with Section 2.2.8, Assigned Zoning, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the zoning classifications of the real property as described in Section 1 is hereby established as AG Agricultural for areas zoned A-2 Agricultural in the County, HI Heavy Industrial for lands zoned Overland Trails County PUD I, CB Community Business for lands zoned Overland Trails County PUD B, LR Low-density Residential for lands zoned Overland Trails County PUD R-L, MR Medium-density Residential for lands zoned Overland Trails County PUD R-M, and AG Agricultural for lands zoned Overland Trails County PUD OS.

Section 6. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zoning map amendment as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 7. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 8. That this ordinance shall be in full force and effect upon its approval and publication, and upon approval and publication of the affiliated annexation.

**FIRST READING:** \_\_\_\_\_

**SECOND READING:** \_\_\_\_\_

**THIRD AND FINAL READING:** \_\_\_\_\_

\_\_\_\_\_  
PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

\_\_\_\_\_  
KRISTINA F. JONES, CITY CLERK

Published: \_\_\_\_\_  
Wyoming Tribune-Eagle



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## Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

### CITY OF CHEYENNE PLANNING COMMISSION

MARCH 4, 2024

#### STAFF REPORT

**FILE:** PUDC-24-16: Project Equality – Assigned Zoning

**LOCATION:** Southwest of the I-25 and I-80 interchange adjacent to Roundtop Rd.

**REQUEST:** Assigning the HI Heavy Industrial, CB Community Business, LR Low-density Residential, MR Medium-density Residential, and AG Agricultural zones to property that has petitioned for annexation.

**ANNEXATION APPLICANT:** AVI PC

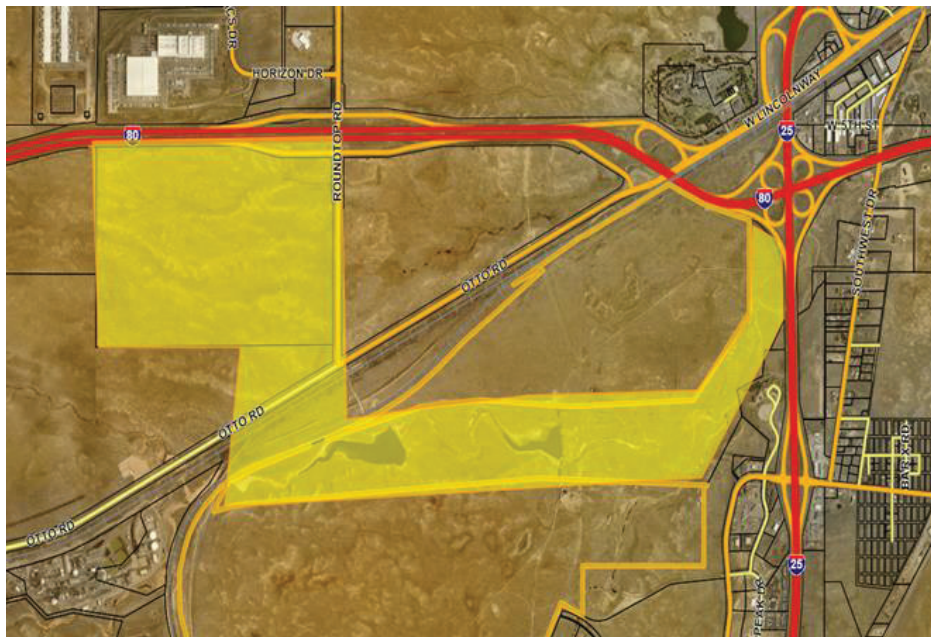
**OWNER:** SWAN Ranch, LLC

**CURRENT ZONING:** County Overland Trails PUD, County A-2 Agricultural

**FUTURE LAND USE:** Agricultural/Rural, Mixed-use Employment, Industrial, and Open Space and Parks

**PURPOSE:** To allow for expansion of the North Range Business Park

**PREPARED BY:** AJ Swain, Planner I



**RECOMMENDED MOTION:**

Move to approve the rezoning of 923.93 acres of land to AG Agricultural for areas zoned A-2 Agricultural in the County, HI Heavy Industrial for lands zoned Overland Trails County PUD I, CB Community Business for lands zoned Overland Trails County PUD B, LR Low-density Residential for lands zoned Overland Trails County PUD R-L, MR Medium-density Residential for lands zoned Overland Trails County PUD R-M, and AG Agricultural for lands zoned Overland Trails County PUD OS, as shown in the attached PUD zone map, noting that the project meets the review criteria for approval.

**APPLICABLE CITY CODE SECTION(S) AND PLANS:**

- UDC 2.2.8 Assigned Zoning
- UDC Article 5
- PlanCheyenne

**SURROUNDING LAND USE AND ZONING:**

|                     | <b>Future Land Use Designation</b>                                             | <b>Zoning</b>                                       | <b>Land Use</b> |
|---------------------|--------------------------------------------------------------------------------|-----------------------------------------------------|-----------------|
| <b>Subject Site</b> | Agricultural/Rural, Mixed-use Employment, Industrial, and Open Space and Parks | County Overland Trails PUD, County A-2 Agricultural | Vacant          |
| <b>North</b>        | Industrial / Mixed-use Employment                                              | LI, PUD, County A-2                                 | Vacant          |
| <b>South</b>        | Agricultural/Rural, Mixed-use Employment, Industrial, and Open Space and Parks | PUD, LI                                             | Vacant          |
| <b>East</b>         | Community Business, Mixed-use Residential, Industrial                          | PUD, County A-2, LI, P (Public)                     | Vacant          |
| <b>West</b>         | Agricultural/Rural Industrial                                                  | County A-2, HI                                      | Vacant          |

**BACKGROUND:**

The applicant has petitioned for land located Southwest of the I-25 and I-80 interchange adjacent to Roundtop Rd. to be annexed into city limits. Annexation of a parcel requires a city zone to be established. Per UDC 2.2.8 a zone will be assigned based on the underlying county zone and per the policy document adopted by the city. Should the applicant wish to have a different zone at the time of annexation, they will be required to submit a subsequent zoning map amendment, proposing a different zone.

The applicant has submitted a zoning map amendment proposing the AG Agricultural and LI Light Industrial zone. The application is PUDC-24-18.

**ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:**

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Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

- 1) **The assigned zone is the most analogous City zone to the current zone when considering allowed uses. Zoning for standard County zones shall be assigned based on the policy document, while zones not listed on the policy document and terminated City zones shall be assigned a City zone on a case-by-case basis. (UDC 2.2.8.d.1)**

The underlying county zones are A-2 Agricultural and PUD Planned Unit Development. The most analogous city zone for the county A-2 Agricultural zone is AG Agricultural according to the policy document. The Assigned Zoning policy document is attached to the staff report as attachment number three.

The County PUD in force for this area is the Overland Trails PUD which was originally adopted in 1984. The Overland Trails PUD assigned sectors of the PUD to specific in-PUD 'zones' of differing use allowances (similar to the more modern Sweetgrass PUD). The PUD 'zones' match different City zones. City Staff has reviewed the allowed uses of the PUD and have applied the following standard:

| <u>Overland Trails PUD zone</u> | <u>City Zone</u>              |
|---------------------------------|-------------------------------|
| I Industrial                    | HI Heavy Industrial           |
| B Business                      | CB Community Business         |
| OS Open Space                   | AG Agricultural               |
| R-L Low Density Residential     | LR Low-density Residential    |
| R-M Medium Density Residential  | MR Medium-density Residential |

A map showing the area to be annexed overlaid over the PUD zoning map is attached to this Staff Report. Also attached area tables showing the PUD zones' allowed uses compared to the City zones' allowed uses.

Establishment of the City zone matches the policy document, and the PUD has been analyzed to select the most analogous City zone; therefore, the item **complies** with review criterion 1.

**STAFF REVIEW:**

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Through the review process, there were no comments.

**CONCLUSION:**

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Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.8.(d).

**ALTERNATIVES:**

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1. Recommend approval of the Assigned Zoning as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the Assigned Zoning subject to conditions or modifications.
3. Recommend denial of the Assigned Zoning based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the Assigned Zoning until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

If the Commission acts contrary to staff's recommendation or recommends conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for their recommendation.

**STAFF RECOMMENDATION:**

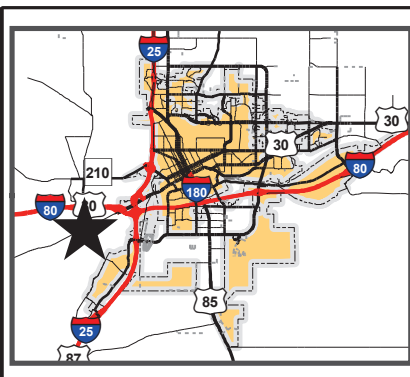
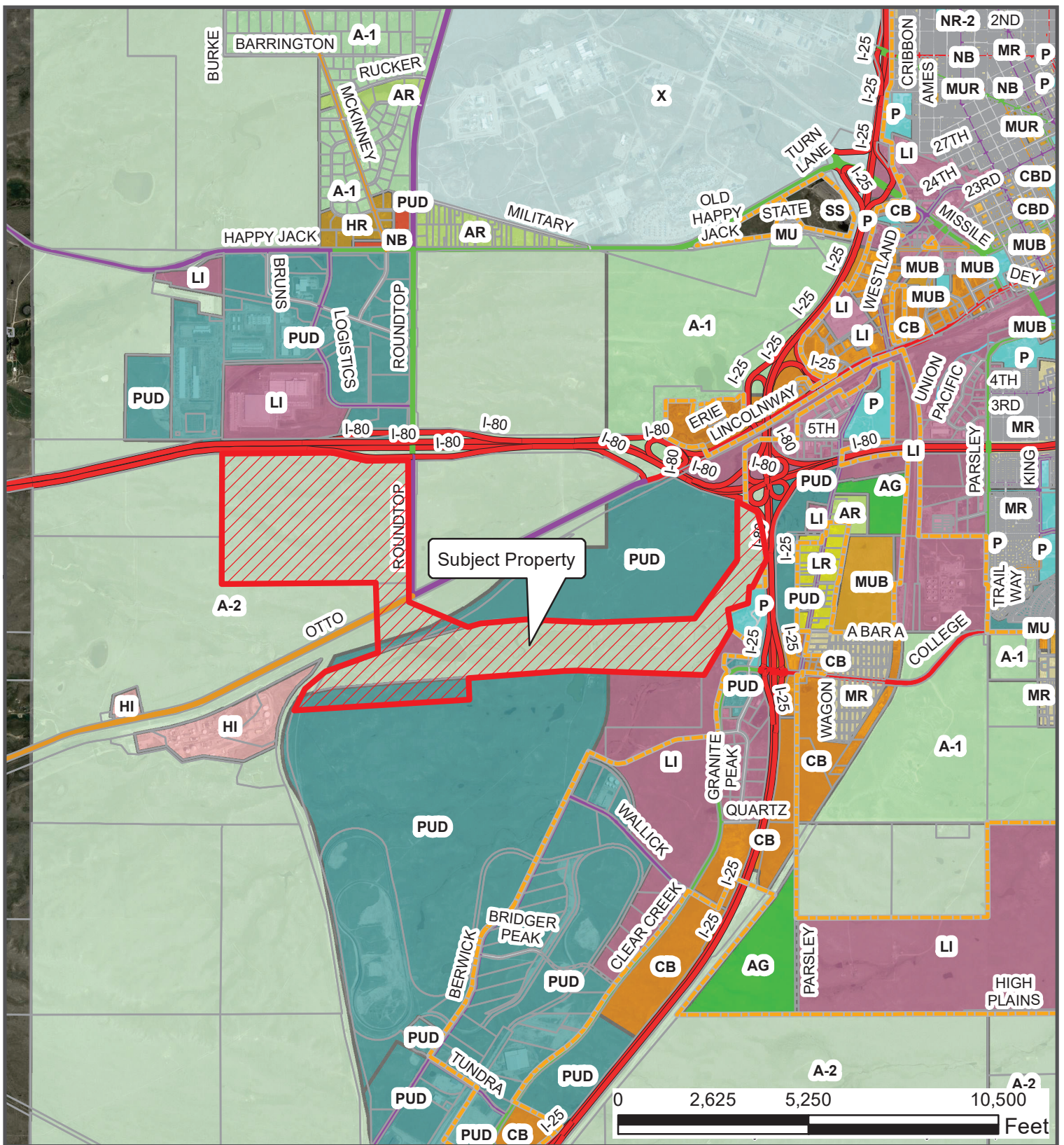
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Staff recommends approval of the assigned zoning of land to be known as Project Equality, Laramie County, Wyoming to AG, HI, CB, LR, and MR as based upon the current County zoning, noting that the project meets the review criteria for approval.

**ATTACHMENTS:**

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1. Zoning Map
2. Annexation Map
3. Assigned Zoning Policy Document
4. PUD zones map with annexation area overlaid
5. Allowed uses analysis



# Attachment 1: Zoning Map PUDC-24-16

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

## Legend

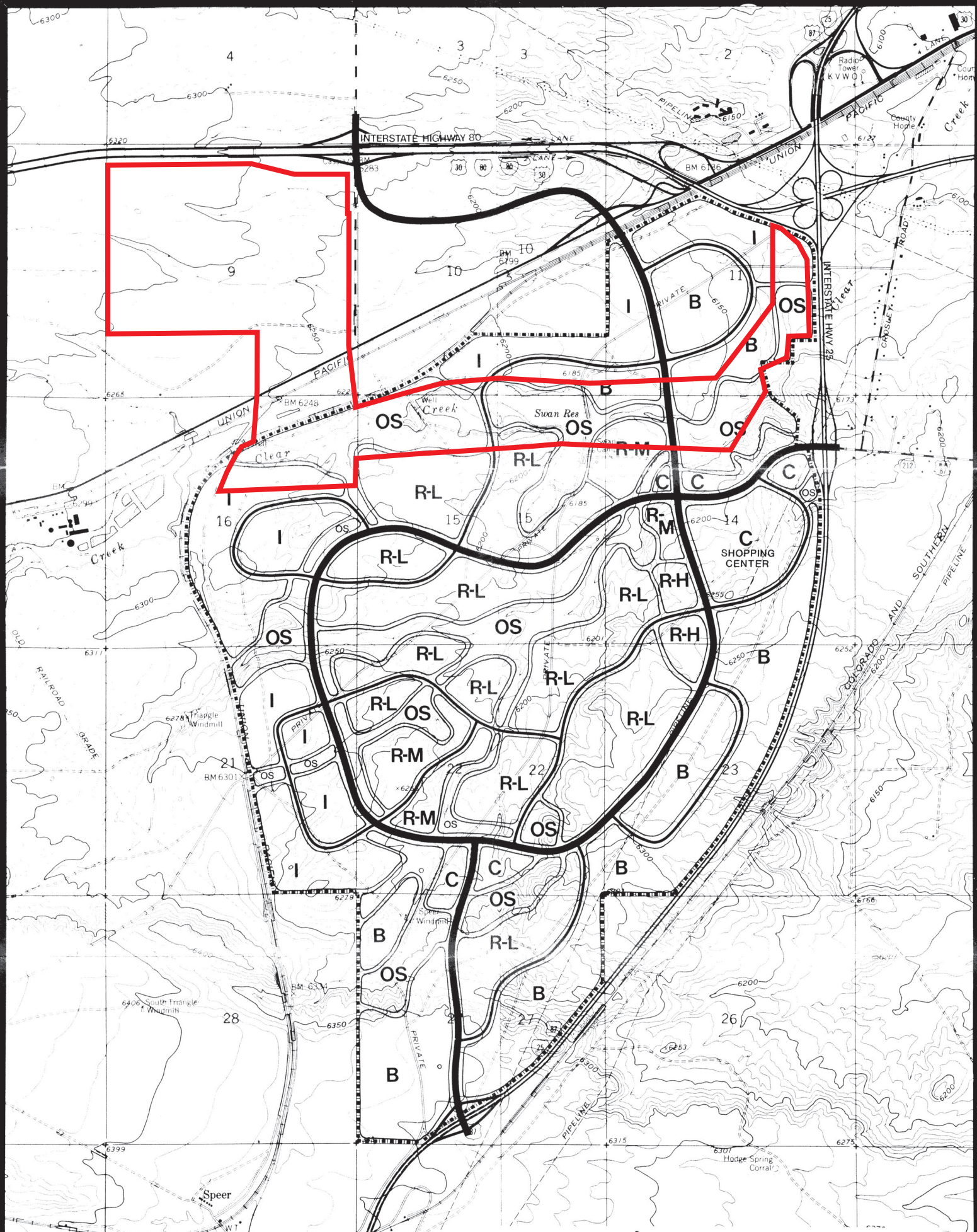
|  |                                                |  |                                          |
|--|------------------------------------------------|--|------------------------------------------|
|  | Nov19_CityLimits                               |  | A-1 / Agricultural and Rural Residential |
|  | Interstate                                     |  | A-2 / Agricultural                       |
|  | Principal Arterial                             |  | AG / City Agricultural                   |
|  | Minor Arterial                                 |  | MUR / Mixed Use Residential Emphasis     |
|  | Major Collector                                |  | CBD / Central Business District          |
|  | Minor Collector                                |  | CB / Community Business                  |
|  | Local                                          |  | NB / Neighborhood Business               |
|  | Private                                        |  | MU / Mixed Use - County                  |
|  | Platted not built                              |  | MUB / Mixed Use Business Emphasis        |
|  | HR / High Density Residential                  |  | MUE / Mixed Use Employment Emphasis      |
|  | MR / Medium Density Residential                |  | HI / Heavy Industrial                    |
|  | LR / Low Density Residential                   |  | LI / Light Industrial                    |
|  | NR-2 / Neighborhood Residential - Med. Density |  | P / Public                               |
|  | NR-3 / Neighborhood Residential - High Density |  | AD / Airport District                    |
|  | AR / Agricultural Residential                  |  | PUD / Planned Unit Development           |
|  |                                                |  | X / Exempt                               |





**City of Cheyenne**  
 Planning and Development Department  
 2101 O'Neil Avenue, Room 202 Cheyenne, WY 82001  
[www.cheyennecity.org/PlanningAndDevelopment](http://www.cheyennecity.org/PlanningAndDevelopment)

| Assigned Zone Chart                     |                                 |
|-----------------------------------------|---------------------------------|
| Underlying County Zone                  | Analogous City Zone             |
| AR - Agricultural Residential           | AR - Agricultural Residential   |
| A1 - Agricultural and Rural Residential | AG - Agriculture                |
| A2 - Agricultural                       | AG - Agriculture                |
| LR - Low Density Residential            | LR - Low Density Residential    |
| MR - Medium Density Residential         | MR - Medium Density Residential |
| HR - High Density Residential           | HR - High Density Residential   |
| NB - Neighborhood Business              | NB - Neighborhood Business      |
| CB - Community Business                 | CB - Community Business         |
| LI - Light Industrial                   | LI - Light Industrial           |
| HI - Heavy Industrial                   | HI - Heavy Industrial           |
| P - Public                              | P - Public                      |
| MU - Mixed Use                          | MUR - Mixed-use Residential     |
| Zone not listed above                   | Based on existing uses          |



ACRES      USE  
3 PHASE      FULL SITE  
180      830      B BUSINESS

| <b>PUD R-L - LOW DENSITY RESIDENTIAL</b>                      |
|---------------------------------------------------------------|
| <b><i>Uses By Right</i></b>                                   |
| Single-family Dwelling                                        |
| <b><i>Uses requiring Board Approval (Conditional Use)</i></b> |
| Churches                                                      |
| Schools offering general education                            |
| Public Parks                                                  |
| Openspace noncommercial recreational areas                    |

| <b>City LR - LOW DENSITY RESIDENTIAL</b>                      |
|---------------------------------------------------------------|
| <b><i>Uses By Right</i></b>                                   |
| Detached Dwelling                                             |
| Semi-attached Dwelling (“Duplex”)                             |
| Child Care, In Home - Minor                                   |
| Home occupations                                              |
| <b><i>Uses requiring Administrative approval</i></b>          |
| Accessory Dwelling                                            |
| Child Care, In Home - Major                                   |
| Utility Stations                                              |
| <b><i>Uses requiring Board Approval (Conditional Use)</i></b> |
| Cottage Lots                                                  |
| Group Housing                                                 |
| Manufactured housing parks                                    |
| Neighborhood Assembly (<350 maximum occupancy)                |
| Primary and secondary schools                                 |
| Community Athletic Field                                      |
| Assisted Living / Nursing Home                                |
| Entertainment, Indoor Recreation Facility                     |
| Entertainment, Outdoor Recreation Facility                    |
| Lodging, Bed and Breakfast                                    |

| <b>PUD R-M - MEDIUM DENSITY RESIDENTIAL</b>                   |
|---------------------------------------------------------------|
| <b><i>Uses By Right</i></b>                                   |
| Single-family Dwelling                                        |
| <b><i>Uses requiring Board Approval (Conditional Use)</i></b> |
| Two-family dwelling                                           |
| Townhouse dwelling                                            |
| Multi-family dwelling                                         |
| Hospitals                                                     |
| Churches                                                      |
| Schools offering general education                            |
| Public Parks                                                  |
| Openspace noncommercial recreational areas                    |
| Home Occupations                                              |
| Group day care homes and day care facilities                  |

| <b>City MR - MEDIUM DENSITY RESIDENTIAL</b>                   |
|---------------------------------------------------------------|
| <b><i>Uses By Right</i></b>                                   |
| Detached Dwelling                                             |
| Semi-attached Dwelling (“Duplex”)                             |
| Attached Dwelling (“Townhouse”)                               |
| Child Care, In Home - Minor                                   |
| Home occupations                                              |
| <b><i>Uses requiring Administrative approval</i></b>          |
| Accessory Dwelling                                            |
| Child Care, In Home - Major                                   |
| Utility Stations                                              |
| <b><i>Uses requiring Board Approval (Conditional Use)</i></b> |
| Cottage Lots                                                  |
| Group Housing                                                 |
| Dormitories                                                   |
| Multi-dwelling Building (“Apartment”)                         |
| Live/Work                                                     |
| Manufactured housing parks                                    |
| Neighborhood Assembly (<350 maximum occupancy)                |
| Primary and secondary schools                                 |
| Community Athletic Field                                      |
| Assisted Living / Nursing Home                                |
| Entertainment, Indoor Recreation Facility                     |
| Entertainment, Outdoor Recreation Facility                    |
| Lodging, Bed and Breakfast                                    |
| Mini Storage                                                  |
| Office – Limited (<3,500)                                     |

| <b>PUD B - BUSINESS</b>                                        |
|----------------------------------------------------------------|
| <b><i>Uses By Right</i></b>                                    |
| Service Stations                                               |
| Auto-washing establishments                                    |
| Hotels and motels                                              |
| Barber and beauty shops                                        |
| Restaurants                                                    |
| Automobile sales and services                                  |
| Grocery and drug stores                                        |
| Professional Offices                                           |
| General Offices                                                |
| Cocktail Lounges and bars                                      |
| Hospitals                                                      |
| Animal, medical and dental clinics                             |
| Veterinary hospitals                                           |
| Tourist homes                                                  |
| Commercaill Kennal                                             |
| Campgrounds                                                    |
| T.V and radio station                                          |
| Senior citizen facilities                                      |
| Group day care homes and day care facilities                   |
| Retail services and wholesale establishments                   |
| Other uses similar to the permitted uses but not listed herein |
| <b><i>Uses requiring Board Approval (Conditional Use)</i></b>  |
| All other uses not similar to the principally permitted uses   |

| <b>City CB - COMMUNITY BUSINESS</b>       |
|-------------------------------------------|
| <b><i>Uses By Right</i></b>               |
| Live/Work                                 |
| Mixed-use Dwelling                        |
| Educational facilities                    |
| Service Business - Limited                |
| Service Business - General                |
| Animal Care - Kennel                      |
| Animal Care – Hospital / Clinic           |
| Child Care, In Home - Minor               |
| Child Care, In Home - Major               |
| Child Care, Center - Minor                |
| Child Care, Center - Major                |
| Emergency Shelter                         |
| Entertainment, Indoor Recreation Facility |
| Lodging, Hotel / Motel                    |
| Medical Care, Clinic and Office           |
| Mini Storage                              |
| Home occupations                          |
| Office – Limited (<3,500)                 |
| Office – general (3,500 – 20K)            |
| Office – Major Office Complex (>20K)      |
| Convenience Retail / Corner Store (<2k)   |
| Neighborhood Retail (2K - 5K)             |
| General Retail (5K - 25K)                 |
| Large-scale Retail (25K - 100K)           |
| Warehouse Retail (> 100K)                 |
| Grocery Store <45K                        |
| Supermarket > 45K                         |
| Outdoor Sales, Limited                    |
| Automobile Service Repair                 |
| Automobile Service Station - Limited      |

| City CB - COMMUNITY BUSINESS                           |
|--------------------------------------------------------|
| <i>Uses By Right</i>                                   |
| Automobile Service Station - General                   |
| Food Service – Limited (under 2K)                      |
| Food Service – General (2K – 4K)                       |
| Food Service – Large-scale (over 4k)                   |
| Government Facility                                    |
| <i>Uses requiring Administrative approval</i>          |
| Neighborhood Assembly (<350 maximum occupancy)         |
| Community Assembly (350 - 1000 maximum occupancy)      |
| Cemeteries                                             |
| Primary and secondary schools                          |
| Community Athletic Field                               |
| Entertainment, Venue (1000+ maximum occupancy)         |
| Outdoor Sales, Seasonal                                |
| Outdoor Sales, Event or Display Area                   |
| Limited Industrial                                     |
| Utility Stations                                       |
| <i>Uses requiring Board Approval (Conditional Use)</i> |
| Group Housing                                          |
| Multi-dwelling Building (“Apartment”)                  |
| Urban Loft Building                                    |
| Developed Athletic Field or Stadium                    |
| Assisted Living / Nursing Home                         |
| Entertainment, Outdoor Recreation Facility             |
| Entertainment, Amusement, Recreation—Other             |
| Outdoor Sales                                          |
| Automobile Service Station – Large-scale               |
| Data Center                                            |
| Recycling Services                                     |
| Transportation facilities                              |
| Nurseries, landscaping                                 |

| <b>PUD I - INDUSTRIAL</b>                                                                                                                                    |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b><i>Uses By Right</i></b>                                                                                                                                  |
| Any Industrial, manufacturing, fabrication, or processing use which does not emit obnoxious noise, smoke, odor, or dust beyond the confines of its property. |
| Warehouses, including lumberyards and building material storage.                                                                                             |
| Railroad yards and maintenance building.                                                                                                                     |
| Uses incidental to the above.                                                                                                                                |
| Any other industrial use determined to be of the same general character as the above.                                                                        |
| <b><i>Uses requiring Board Approval (Conditional Use)</i></b>                                                                                                |
| Any other industrial use not determined to be of the same general character as the above uses.                                                               |

| <b>City HI - HEAVY INDUSTRIAL</b>                              |
|----------------------------------------------------------------|
| <b><i>Uses By Right</i></b>                                    |
| Mini Storage                                                   |
| Storage, Yard                                                  |
| Home occupations                                               |
| Office – Limited (<3,500)                                      |
| Office – general (3,500 – 20K)                                 |
| Office – Major Office Complex (>20K)                           |
| Automobile Service Repair                                      |
| Automobile Service Station – Limited, General, and Large-scale |
| Data Center                                                    |
| Limited Industrial                                             |
| Moderate Industrial                                            |
| General Industrial                                             |
| Limited Outdoor Storage                                        |
| Outdoor Sales                                                  |
| Impoundment Yards                                              |
| Railroad yards and maintenance buildings                       |
| Government Facility                                            |
| Recycling Services                                             |
| Transportation facilities                                      |
| Nurseries, landscaping                                         |
| <b><i>Uses requiring Administrative approval</i></b>           |
| Utility Stations                                               |
| <b><i>Uses requiring Board Approval (Conditional Use)</i></b>  |
| Group Housing                                                  |
| Entertainment, Outdoor Recreation Facility                     |
| Entertainment, Amusement, Recreation—Other                     |
| Outdoor Sales                                                  |
| Industrial                                                     |
| Salvage yards                                                  |
| Junk yards                                                     |

| <b>PUD OS - OPEN SPACE</b>                                                                                                                                                                                                                                                                                                                                                                                                                             |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b><i>Uses By Right</i></b>                                                                                                                                                                                                                                                                                                                                                                                                                            |
| Agricultural uses including: Farming, pasture, grazing, outdoor plant nurseries, sod farming and other such similar uses.                                                                                                                                                                                                                                                                                                                              |
| Private and public recreation uses including: Golf courses, tennis courts, driving ranges, picnic areas, parks, hiking, and horseback areas.                                                                                                                                                                                                                                                                                                           |
| Residential uses including: Lawns, gardens, parking areas and play areas.                                                                                                                                                                                                                                                                                                                                                                              |
| Any other nonstructural use provided it is elevated above the flood protection elevation and a determination is made by the appropriate engineering authority that the use will not unduly restrict the capacity of the channel, floodplain, or drainage, ditches; or of any other drainage facilities or system.                                                                                                                                      |
| Storage yards for equipment and material not subject to major floods provided such storage is accessory to uses permitted in adjoining zoning districts; also, provided, the stored items are not flammable or toxic materials or other materials which could contaminate public waters to concentrations determined to be hazardous by local, state or federal standards; and also provided stored items can be firmly anchored during time of flood. |

| <b>City AG - AGRICULTURAL</b>                                 |
|---------------------------------------------------------------|
| <b><i>Uses By Right</i></b>                                   |
| Detached Dwelling                                             |
| Animal Care - Kennel                                          |
| Child Care, In Home - Minor                                   |
| Lodging, Bed and Breakfast                                    |
| Home occupations                                              |
| General Agriculture                                           |
| Limited Agriculture                                           |
| Nurseries, landscaping                                        |
| <b><i>Uses requiring Administrative approval</i></b>          |
| Accessory Dwelling                                            |
| Cemeteries                                                    |
| Child Care, In Home - Major                                   |
| Child Care, Center - Minor                                    |
| <b><i>Uses requiring Board Approval (Conditional Use)</i></b> |
| Neighborhood Assembly (<350 maximum occupancy)                |
| Primary and secondary schools                                 |
| Assisted Living / Nursing Home                                |
| Animal Care – Hospital / Clinic                               |
| Child Care, Center - Major                                    |
| Entertainment, Outdoor Recreation Facility                    |
| Entertainment, Venue (1000+ maximum occupancy)                |
| Entertainment, Amusement, Recreation—Other                    |
| Agricultural equipment or product sales                       |
| Commercial stables, arenas, and show barns                    |

| County A2 - AGRICULTURAL                                       |
|----------------------------------------------------------------|
| <i>Uses By Right</i>                                           |
| Agriculture and uses incidental to an agricultural operation   |
| Animal hospitals or clinics                                    |
| Bed and breakfasts                                             |
| Cemeteries                                                     |
| Family child care home                                         |
| Family child care centers                                      |
| Home occupations                                               |
| Single-family residential                                      |
| Small Wind Energy Systems                                      |
| Churches, temples or other places of worship                   |
| Duplexes                                                       |
| Child care centers - minor                                     |
| Primary and secondary schools                                  |
| Commercial stables, arenas, kennels, bird farms and show barns |
| Farm stands                                                    |
| Accessory living quarters                                      |
| <i>Uses requiring Board Approval (Conditional Use)</i>         |
| Agricultural equipment or product sales                        |
| Commercial animal processing plants                            |
| Commercial feed lots                                           |
| Golf courses                                                   |
| Race tracks                                                    |
| Work camps                                                     |
| Any other similar use                                          |
| Commercial nurseries and landscaping businesses                |

| City AG - AGRICULTURAL                                 |
|--------------------------------------------------------|
| <i>Uses By Right</i>                                   |
| Detached Dwelling                                      |
| Animal Care - Kennel                                   |
| Child Care, In Home - Minor                            |
| Lodging, Bed and Breakfast                             |
| Home occupations                                       |
| General Agriculture                                    |
| Limited Agriculture                                    |
| Nurseries, landscaping                                 |
| <i>Uses requiring Administrative approval</i>          |
| Accessory Dwelling                                     |
| Cemeteries                                             |
| Child Care, In Home - Major                            |
| Child Care, Center - Minor                             |
| <i>Uses requiring Board Approval (Conditional Use)</i> |
| Neighborhood Assembly (<350 maximum occupancy)         |
| Primary and secondary schools                          |
| Assisted Living / Nursing Home                         |
| Animal Care – Hospital / Clinic                        |
| Child Care, Center - Major                             |
| Entertainment, Outdoor Recreation Facility             |
| Entertainment, Venue (1000+ maximum occupancy)         |
| Entertainment, Amusement, Recreation—Other             |
| Agricultural equipment or product sales                |
| Commercial stables, arenas, and show barns             |